

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403057	LYNSIE B. ASHTON, SPECIAL ADMINISTRATOR FOR DECEASED PLAINTIFF PATRICIA L. NISSEN. vs NISSEN	MOTION TO SET ASIDE JUDGMENT

Tentative Ruling: The Court continues the hearing on this Motion to August 21, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2506266	MCCOLLUM vs COUNTY OF RIVERSIDE	MOTION TO QUASH OR MODIFY DEPOSITION SUBPOENA FOR PRODUCTION OF MEDICAL RECORDS

Tentative Ruling:

Factual/Procedural Context

Plaintiff Michael McCollum ("Plaintiff") brings this disability discrimination action against his former employer, Defendant County of Riverside ("County").

In the Complaint, Plaintiff alleges that he injured his lower back and left leg while he was on duty in November 2020. Accordingly, Plaintiff was placed on disability medical leave from November 2020 through October 2021, when he returned to work with modified duties. After six months, Plaintiff alleges that County informed him it could no longer accommodate his restrictions and placed him on another medical leave of absence. Plaintiff alleges that on November 1, 2022, his physician cleared him to return to work with modified work duties. However, Plaintiff alleges that County informed him he could either take a demotion, retire, or quit. Accordingly, on November 2, 2022, Plaintiff was constructively discharged and forced to retire at 44 years old.

On October 31, 2025, Plaintiff filed a Complaint against County, asserting causes of action for: (1) Disability Discrimination (Govt. Code § 12940, et seq.); (2) Failure to Accommodate (Govt. Code § 12940(m)); (3) Failure to Engage in the Interactive Process (Govt. Code § 12940(n)) and (4) Retaliation (Govt. Code § 12940(h).)

On May 27, 2026, County issued two deposition subpoenas for production of medical records to Plaintiff's medical providers, Community Medical Group of Riverside

and Riverside Medical Clinic, which sought records from January 1, 2015, to the present.

Plaintiff now moves to quash or modify the subpoenas, arguing that the requested dates are overbroad because the Complaint alleges that the discrimination occurred as a result of the workplace injury that he sustained in November 2020. As such, Plaintiff argues that his medical records from January 1, 2015, through November 2020 are irrelevant. Plaintiff further contends that defense counsel agreed to limit the time period on two different occasions but then reneged each time.

In opposition, County argues that medical records extending from 2015 onward are relevant because Plaintiff previously filed workers' compensation claims in 2012, 2016, and 2017. County asserts that Plaintiff's 2016 workers' compensation claim concerns headaches, and his 2017 claim concerned his upper back. County contends that medical records from 2015 are relevant to Plaintiff's allegations of emotional distress and mental health treatment.

In reply, Plaintiff repeats the arguments in the underlying motion.

Analysis

I. Procedural Issues

County argues that Plaintiff's motion is procedurally defective because it lacks a separate statement, and as such, the Court should exercise its discretion to deny the motion in full.

California Rule of Court, Rule 3.1345(a)(5) requires a separate statement "[t]o compel or to quash the production of documents or tangible things at a deposition." The process by which a nonparty is required to provide discovery qualifies as a deposition subpoena. (C.C.P. § 2020.010(b).) A separate statement is not required when no response has been provided to the discovery. (C.R.C. Rule 3.1345(b)(1).) Here, however, Plaintiff objected to the subpoenas on June 1, 2026. (Chami Decl., Exh. B.) Therefore, a separate statement is required.

A trial court is "well within its discretion" to deny a motion to compel production of documents that lacks a separate statement. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893, 83 Cal.Rptr.3d 146 [discussing former Rule 3.1020, which requires a separate statement on a motion to compel further production of documents].) However, the lack of a separate statement does not limit a trial court's discretion to grant the motion "notwithstanding the absence of a separate statement." (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409, fn. 14 [discussing former Rule 3.1020].)

The Court exercises its discretion to consider the merits of the motion in the absence of a separate statement.

II. Merits

Code of Civil Procedure section 1987.1, subdivision (a), states:

If a subpoena requires the attendance of a witness or the production of books, documents, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violation of the right of privacy of the person.

A party, witness, consumer, employee, or person whose personally identifying information is sought may bring the motion. (C.C.P. § 1987.1 (b).)

If a party seeks to subpoena personal records (e.g., medical and insurance records) and employment records, then the party must serve on the consumer/employee a notice to consumer along with a copy of the subpoena. (C.C.P. §§ 1985.3 (b) & (e); 1985.6(b) & (e).) The party-consumer/employee whose records are sought may move to quash or modify the subpoena under section 1987.1. (C.C.P. §§ 1985.3 (g); 1985.6 (f)(1).) Five days before production, the deposition officer and witness are to be given notice of the motion. (C.C.P. §§ 1985.3(g); 1985.6(f)(1).)

Code of Civil Procedure section 1987.1 requires that a motion to quash a subpoena be "reasonably made," but does not require that the parties first resolve the issue informally. (See Code of Civ. Proc., §1987.1.) In this case, the evidence shows that the parties met and conferred extensively before Plaintiff filed this motion. (Chami Decl., ¶ 3-25 and Exhs. B-G.)

Here, the subpoenas at issue seek the following documents from Plaintiff's medical providers:

Any and all WRITINGS, relating to MICHAEL B. MCCOLLUM, including all medical and billing records, medical reports, surgery records, emergency room records, admitting sheets, doctors' entries, nurses' charts and entries, physical examination reports, drug screening reports, progress reports, chemistry-therapeutic-toxicology tests and reports, occupational therapy records, physical therapy records, case history, diagnosis, prognosis, condition, doctor's notes regarding any leave of absence requests, Family Medical Leave Act records, California Family Rights Act records, Pregnancy Disability Leave records, doctor's notes regarding requests for time off work,

doctors' notes, charts, summaries regarding accommodations, medications prescribed or recommended, discharge summaries, correspondence, and any and all records regarding mental health, psychiatric and/or psychotherapy records, all consultation and examination records and reports, invoices and statement of charges rendered from January 1, 2015 to Present.

(Chami Decl., Exh. A.)

A motion to quash or modify may be granted on the grounds that the matters sought to be discovered are privileged, protected, or beyond the scope of discovery. (C.C.P. § 2017.010; *Rudnick v. Superior Court* (1974) 11 Cal.3d 924, 929.) Plaintiff seeks to quash or modify the subpoenas, arguing that they are overbroad because the Complaint only alleges that County's disability discrimination occurred as a result of the workplace injury that Plaintiff sustained in November 2020.

Medical records are protected by the right of privacy. (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 119.) As stated by the California Supreme Court: "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) There is no compelling interest or need requirement based on *Williams*, in every case, but rather, the court is to consider the type of privacy, the seriousness of invasion, and the availability of alternatives and protective measures. (*Id.* at 556-559.) Discovery will not be ordered if the information sought is available from other sources or through less intrusive means. (*Allen v. Superior Court* (1984) 151 Cal.App.3d 447, 449 [applying to third party privacy rights].)

Generally, in personal injury cases, discovery of relevant medical history is allowed because a defendant has no other means to obtain this information. (*Palay v. Superior Court* (1993) 18 Cal.App.4th 919, 933-934, disapproved of on other grounds by *Williams, supra*, 3 Cal.5th at 557, fn. 8 ["To the extent prior cases require a party seeking discovery of private information to always establish a compelling interest or compelling need, without regard to the other considerations articulated in *Hill v. National Collegiate Athletic Assn.*....they are disapproved."].) However, patients have a reasonable expectation of privacy as to their medical information that is not directly relevant to a particular condition the patient has placed in issue. (*California Consumer Health Care Council v. Kaiser Foundation Health Plan, Inc.* (2006) 142 Cal. App. 4th 21, 31.) Thus, a plaintiff's "lifetime" medical history is not discoverable and the plaintiff's right of privacy is protected as to physical and mental conditions unrelated to the claim or injury sued upon. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 864.)

Here, the subpoenas seek, among other things, all of Plaintiff's medical records, mental health records, and billing information from January 1, 2015 to present. There is no dispute that medical records are protected by the right of privacy. However, Plaintiff has placed some of his medical and mental health conditions at issue by filing this action. Specifically, the Complaint alleges that Plaintiff injured his lower back and left leg in November 2020, and suffered mental anguish and emotional distress as a result of County's conduct. (Complaint, ¶¶ 9-12, 15, 21, 27, 33, 40.) Accordingly, Plaintiff's medical records that are relevant to his alleged medical and mental health conditions should be produced. Further, any pre-existing medical conditions that may affect his alleged condition are also relevant.

However, the subpoenas at issue are not limited to these specific injuries. County has failed to show that the requested information, without limitation to the body parts and condition at issue in this matter, is directly relevant to this matter. (*See Harris v. Superior Court* (1992) 3 Cal.App.4th 661, 665 ["The proponent of discovery of constitutionally protected material has the burden of making a threshold showing that the evidence sought is directly relevant to the claim or defense."], disapproved of on other grounds by *Williams, supra*, 3 Cal.5th at 557, fn. 8.) Specifically, County argues that Plaintiff previously filed workers' compensation claims in 2016 and 2017 related to headaches and an upper back injury, respectively. However, the Complaint only places Plaintiff's lower back and left leg at issue. Accordingly, County fails to establish how Plaintiff's prior claims of injuries to unrelated body parts, specifically Plaintiff's head and upper back, are relevant.

County then argues that Plaintiff's claims for disability discrimination, failure to accommodate, and retaliation placed at issue "the disability, restrictions, functional limitations, ability to perform job duties, and requested accommodations that existed when the parties addressed his return to work." However, County cites to no legal authority in support of its argument. Further, although the Complaint alleges that "Defendants knew that Plaintiff had a serious medical condition which limited a major life activity or was regarded by his employer as having an impairment which limited a major life activity" (Complaint, ¶¶ 24, 30, 37) and seeks damages for "mental pain and anguish, emotional distress and related damages" (Prayer, ¶ 2), the Complaint contains no allegations of any other prior injuries or medical conditions other than the November 2020 workplace injuries to Plaintiff's lower back and left leg. Accordingly, Plaintiff's allegations of disability discrimination, failure to accommodate, and retaliation are limited to his November 2020 workplace injury, as framed by the pleadings. Thus, County's argument fails.

County then argues that Plaintiff's responses to Form Interrogatories (Employment) indicate that he has suffered, and will continue to suffer, pain, suffering, mental anguish, and emotional distress as a result of County's conduct. Although County argues that "[a]t no point in any of these verified responses does Plaintiff identify a date on which his claimed pain, suffering, or emotional distress began," as noted above, the Complaint restricts Plaintiff's allegations of injury and emotional distress to his November 2020 workplace injury.

Given the above, the Court **GRANTS** Plaintiff's motion with respect to the requested medical records; the subpoena shall be limited to the body parts and conditions identified in the Complaint and his responses to Form Interrogatories (Employment).

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506266	MCCOLLUM vs COUNTY OF RIVERSIDE	MOTION TO COMPEL

Tentative Ruling: The Court finds that the Motion is MOOT. Request for sanctions denied.